



ALLIANCE FOR COLLECTIVE EMPOWERMENT AND DEVELOPMENT

SUBMISSION TO THE COMMITTEE ON THE ELIMINATION OF RACIAL DISCRIMINATION

**In Support of the Development of a General
Recommendation on Reparations for the Historical Injustices
of Chattel Enslavement and the Ongoing Harms Suffered by
People of African Descent**

Submitted by

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SUBMITTING ORGANIZATION

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For Our People, By Our People

I. INTRODUCTION AND PROCEDURAL BASIS

The Alliance for Collective Empowerment and Development (ACE) is a United States-based civil society organization founded by Léandre Poplus in 2026. ACE is a twenty-five-year initiative to establish a network of self-governing, self-sustaining cities for Black and Native American communities on sovereign land, funded by community capital, and governed by a constitutional framework designed to last generations.

ACE submits this document in support of the Committee on the Elimination of Racial Discrimination's (CERD) development of a General Recommendation on reparations for the historical injustices caused by the chattel enslavement of Africans and the subsequent harms inflicted upon people of African descent. The Committee's first draft general recommendation on reparations, which emphasizes that there are ongoing harms related to chattel slavery and the trade in African peoples and that the present manifestations of these harms must be addressed and remedied as a matter of human rights law, directly frames the violations and ongoing consequences this submission documents.

This submission addresses the situation of Black Americans in the United States. The United States ratified the International Convention on the Elimination of All Forms of Racial Discrimination (ICERD) in 1994 and is accordingly a State party subject to the obligations the Committee's General Recommendation will elaborate. This submission contributes documented evidence of specific, ongoing, measurable harms in the United States for the Committee's consideration in developing that Recommendation.

ACE additionally identifies, in Section V of this submission, the parallel procedural vehicle of a communication to the Special Rapporteur on Contemporary Forms of Racism, Racial Discrimination, Xenophobia and Related Intolerance (currently Ms. Ashwini K.P. of India, mandate renewed by Human Rights Council resolution 61/35, March 2026), which ACE intends to pursue as a complementary, independent track under the UN Special Procedures system.

II. THE FOUNDATIONAL CLAIM: A HUMAN RIGHTS VIOLATION BEFORE CIVIL RIGHTS EXISTED

ACE's submission begins with a distinction that prior generations of Black American advocacy did not fully advance on the international stage: the distinction between a civil rights violation and a human rights violation.

Civil rights are those that a government extends to the persons it recognizes as falling within the protection of its legal system. Human rights are inherent, recognized under international law

independently of what any domestic legal system provides. A government that denies legal personhood to a class of human beings is not merely violating their civil rights. It is committing a human rights violation at the most fundamental level, the denial of the personhood that is the precondition for any rights claim whatsoever.

The legal history of Black Americans in the United States begins at this level, not the civil rights level. The Supreme Court of the United States held in *Dred Scott v. Sandford*, 60 U.S. 393 (1857), that persons of African descent, whether enslaved or free, were not citizens of the United States and possessed no rights that the United States was bound to respect. This ruling preceded and precluded any civil rights framework. It did not deny equal civil rights. It denied personhood. The human rights violation was therefore prior to, more fundamental than, and not adequately addressed by, the domestic civil rights remedies that were eventually, partially, and incompletely extended after 1865 and again after 1964.

This distinction is not merely rhetorical. It determines the proper forum for the claim. Civil rights remedies are pursued in domestic courts and legislatures. Human rights violations, particularly those in which the domestic legal system was itself the instrument of the violation, are properly pursued before international bodies whose authority does not depend on the goodwill of the violating state. That is why ACE brings this claim before the Committee, and why the Committee is the correct body to receive it.

III. THE DOCUMENTED HISTORICAL RECORD

A. The Legal Denial of Personhood

The foundational violation is documented in the legal architecture of chattel slavery itself. Enslaved Black Americans were classified as property under United States law, deprived of legal personhood, and denied any cognizable rights. The United States Constitution's three-fifths compromise counted enslaved persons as three-fifths of a free person for apportionment purposes while denying them any political participation, embedding the denial of full personhood in the nation's founding document.

The Supreme Court's 1857 ruling in *Dred Scott v. Sandford* gave this denial explicit constitutional expression, holding that the class of persons of African descent had been regarded as beings of an inferior order, and altogether unfit to associate with the white race, either in social or political relations, and that they had no rights which the white man was bound to respect. This ruling was not overturned by the Thirteenth Amendment abolishing slavery in 1865. It required the Fourteenth Amendment in 1868, granting birthright citizenship, to formally supersede it. The

human rights violation the Court articulated in 1857 had therefore governed the legal status of Black Americans for the entirety of the nation's existence to that point.

B. The Pattern of Reconstitution and Destruction

Emancipation in 1865 did not produce the transfer of resources, land, or political standing that would have enabled genuine economic and political reconstitution. Special Field Order No. 15, issued by General William T. Sherman in January 1865, set aside coastal land in South Carolina, Georgia, and Florida for settlement by formerly enslaved Black Americans in allotments of not more than forty acres per family. Applied to the approximately 4.5 million formerly enslaved persons living at that time, fulfillment of this promise would have totaled approximately 180 million acres. President Andrew Johnson revoked Special Field Order No. 15 the same year it was issued.

The pattern that followed emancipation is documented and consistent: every significant instance of Black political, economic, or institutional self-organization that reached sufficient scale to constitute meaningful self-determination was met with organized, often state-sanctioned destruction.

- The Freedmen's Bureau, established in 1865 to assist formerly enslaved persons in transitioning to freedom, was defunded and dismantled by 1872.
- The Reconstruction era governments in the former Confederate states, in which Black Americans participated as voters and elected officials for the first time, were systematically dismantled through violence, disenfranchisement, and the withdrawal of federal protection by the 1870s and 1880s.
- The Greenwood District of Tulsa, Oklahoma, known as Black Wall Street, one of the most prosperous Black communities in American history, was destroyed by a mob on May 31 to June 1, 1921. The destruction was aided by the deputization of attackers by local law enforcement and the deployment of private aircraft to fire on Black residents and businesses. No federal action was taken. No restitution was provided.
- The Federal Bureau of Investigation's COINTELPRO program, operating from 1956 to 1971, targeted Black political and civil rights organizations including the Southern Christian Leadership Conference and the Black Panther Party, conducting illegal surveillance, disruption, and operations that contributed to the deaths and imprisonment of Black political leaders.

The Committee's draft General Recommendation's recognition that contemporary structures and systems are the continuation of racial discrimination in chattel slavery is directly applicable to this pattern. Each act of destruction was not a discrete incident but part of a documented, recurring

sequence: Black Americans reconstitute economic and political capacity; the state or state-adjacent actors destroy it; no remedy is provided; the process repeats.

C. The Present-Day Consequences

The present-day consequences of this documented pattern are measurable and severe. The following figures are drawn from peer-reviewed public health literature, federal government data sources, and established research institutions, and constitute the ongoing dimension of the human rights violation this submission names.

Maternal Mortality

Black women in the United States die in childbirth or from pregnancy-related causes at approximately three times the rate of white women. This disparity persists across income and education levels, indicating that it is not explained by socioeconomic factors alone. Research documents that implicit clinical bias, differential pain management, and inadequate postpartum monitoring contribute directly to this outcome. The United States maternal mortality rate for Black women is among the highest of any developed nation for any demographic group.

Wealth Gap

The median white family in the United States holds approximately eight times the wealth of the median Black family. This gap is directly attributable to documented historical policies: the exclusion of Black Americans from federally subsidized homeownership programs from the 1930s through the 1960s (redlining), the destruction of Black-owned property and businesses without compensation, and the systematic denial of intergenerational wealth transfer through discriminatory inheritance and estate systems. The wealth gap has widened, not narrowed, in recent decades.

Health Outcomes

Black Americans experience cardiovascular disease at sixty percent higher rates than white Americans, type 2 diabetes at seventy-seven percent higher rates, and hypertension at the highest rates of any demographic group in the United States. Research documents that chronic stress arising from sustained exposure to racial discrimination produces measurable biological effects including elevated cortisol levels, accelerated cellular aging, and increased cardiovascular risk. These are not genetic inevitabilities. They are documented consequences of sustained, government-sanctioned racial harm.

Incarceration

Black Americans constitute approximately thirteen percent of the United States population and approximately thirty-eight percent of its incarcerated population.

The mass incarceration of Black Americans, accelerated by sentencing policies enacted in the 1980s and 1990s that produced documented racial disparities, constitutes the latest iteration of a documented pattern in which the criminal legal system has been used to suppress Black political and economic participation. The Thirteenth Amendment to the United States Constitution, which abolished slavery, contains an explicit exception permitting involuntary servitude as punishment for crime, an exception that has been documented as the legal mechanism through which forms of compelled labor of Black Americans were maintained after formal emancipation.

Political Exclusion

Black Americans were systematically disenfranchised from 1877 through 1965 through a combination of poll taxes, literacy tests, grandfather clauses, and organized violence against those who attempted to register or vote. The Voting Rights Act of 1965 addressed these mechanisms directly. The Supreme Court's 2013 ruling in *Shelby County v. Holder* removed the Act's preclearance requirement, after which multiple states enacted voting restrictions that federal courts have subsequently found to have targeted Black voters with surgical precision. The right to political participation, recognized under Article 5 of ICERD, remains a site of active, documented violation.

IV. THE APPLICABLE LEGAL FRAMEWORK

A. ICERD Obligations of the United States

The United States ratified ICERD in 1994, establishing binding obligations under the Convention. The following provisions are directly engaged by the documented violations described in Section III.

- Article 2(1) requires each State party to pursue by all appropriate means a policy of eliminating racial discrimination in all its forms and promoting understanding among all races. The documented failure to provide any land-based or wealth-based remedy following emancipation, and the documented pattern of destruction of Black economic and political institutions without remedy, constitutes a failure of this obligation.
- Article 5 requires State parties to guarantee the right of everyone, without distinction as to race, color, or national or ethnic origin, to equality before the law, notably in the enjoyment of civil and political rights including the right to equal participation in government and to economic, social and cultural rights including the rights to work, housing, public health, and education. The disparities documented in Section III constitute ongoing, measurable failures of this guarantee.

- Article 6 requires State parties to assure to everyone within their jurisdiction effective protection and remedies against any acts of racial discrimination and the right to seek just and adequate reparation or satisfaction for any damage suffered as a result of such discrimination. No effective domestic remedy for the historical violations documented in Section III has been enacted. Congressional proposals for a study commission on reparations have been introduced repeatedly since 1989 without passage.

B. The Reparations Obligation Under International Law

The Committee's developing General Recommendation addresses directly the legal obligations of State parties to provide reparations for the historical injustices of chattel enslavement. ACE submits that the United States bears reparative obligations of three categories, consistent with the framework the Committee is developing.

- Restitution: restoration of that which was taken. The land promised under Special Field Order No. 15 and never delivered; the property destroyed in Greenwood and elsewhere without compensation; the wages earned by enslaved persons under compulsion without payment.
- Compensation: monetary remedy for losses that cannot be restored. The generational wealth gap that is the documented consequence of exclusion from federally subsidized wealth-building programs; the health disparities that are the documented biological consequence of sustained, government-sanctioned racial harm; the economic losses attributable to mass incarceration at racially disparate rates.
- Guarantees of non-repetition: structural and institutional changes designed to prevent recurrence. The dismantling of systems documented to produce racial disparities in health, wealth, criminal justice, and political participation; the establishment of community-controlled institutions capable of addressing these disparities from within the affected community.

C. The Principle of Continuing Violation

The violations documented in this submission are not solely historical. They are ongoing. The Committee's draft General Recommendation correctly identifies that the harms of chattel slavery and the trade in enslaved Africans continue to manifest in contemporary systems and structures. ACE submits that the applicable principle is that of continuing violation: where a government act or policy produces effects that persist into the present, the violation is continuous, not concluded, and the obligation to remedy it is current, not extinguished by the passage of time since the originating act.

The wealth gap, the maternal mortality disparity, the health outcome disparities, and the political exclusion documented in Section III are all present-day phenomena. They are not merely the

memories of historical wrongs. They are the living, measurable, ongoing consequences of those wrongs, and they impose a current reparative obligation on the United States as an ICERD State party.

V. ACE'S SPECIFIC REQUESTS TO THE COMMITTEE

ACE respectfully requests that the Committee consider the following in the development and adoption of the General Recommendation on reparations for chattel enslavement:

Request 1: Name the Denial of Personhood as the Foundational Violation

The General Recommendation should explicitly recognize that the legal denial of personhood to Black Americans, as expressed in the institution of chattel slavery and its legal architecture, constitutes a human rights violation prior to and more fundamental than the civil rights violations that followed. This framing is necessary to establish that the claim properly belongs before international human rights bodies, not exclusively in domestic civil rights frameworks whose authority derives from the very government that committed the originating violation.

Request 2: Address the Pattern of Reconstitution and Destruction

The General Recommendation should recognize that the reparative obligation encompasses not only the originating violation of chattel slavery but also the documented, recurring pattern in which every significant instance of Black American economic and political reconstitution was met with state-sanctioned destruction without remedy. Reparation limited to the original act of enslavement, without addressing this pattern, would leave unaddressed the mechanism by which the harm has been continuously perpetuated.

Request 3: Affirm That Present-Day Disparities Are the Continuing Violation

The General Recommendation should affirm the principle of continuing violation as applied to the present-day disparities documented in Section III of this submission. The wealth gap, maternal mortality disparity, health outcome disparities, and political exclusion are current, measurable human rights violations. They are not merely historical residue. They impose a current reparative obligation.

Request 4: Address the Inadequacy of the U.S. Domestic Remedy

The General Recommendation should address the situation in which a State party has enacted no effective domestic remedy for historical violations and their continuing consequences, despite repeated internal demands, legislative proposals, and the passage of more than one hundred

sixty years since the originating acts. The United States has never enacted reparative legislation for chattel enslavement. The right to an effective remedy under Article 6 of ICERD requires that this absence be recognized and addressed in the General Recommendation's elaboration of State party obligations.

Request 5: Recognize Community-Controlled Self-Determination as a Form of Reparation

ACE's own work represents one model of reparative remedy: the establishment of self-governing, self-sustaining communities built by and for the affected population, on sovereign land, funded by community capital, and governed by a constitutional framework the community designs for itself. The General Recommendation should recognize that reparation includes the affirmative right of affected communities to pursue collective self-determination and that State parties bear an obligation not to obstruct that pursuit.

VI. PARALLEL SUBMISSION: UN SPECIAL PROCEDURES

In addition to this submission to CERD's General Recommendation process, ACE intends to submit a communication under the UN Special Procedures system to the Special Rapporteur on Contemporary Forms of Racism, Racial Discrimination, Xenophobia and Related Intolerance (Ms. Ashwini K.P. of India), whose mandate was renewed by Human Rights Council resolution 61/35 adopted on 31 March 2026.

The Special Procedures communications channel is procedurally open without requirement of any U.S. treaty declaration or ratification, and without requirement that domestic remedies be exhausted. It provides for urgent appeals and letters of allegation that generate a formal, publicly documented exchange between mandate-holders and the United States government, appearing in the Special Procedures' Joint Communications Report to the Human Rights Council.

ACE intends that communication to document the same violations described in Section III of this submission, with specific reference to the ongoing maternal mortality disparity, wealth gap, and mass incarceration as continuing manifestations of racial discrimination within the mandate of the Special Rapporteur. ACE invites the Committee to note this parallel track and to coordinate with the Special Rapporteur's office where appropriate in the development of the General Recommendation.

VII. CLOSING STATEMENT

ACE brings this submission before the Committee not as a protest and not as a symbolic act. It is brought as a serious, documented, procedurally grounded contribution to the most consequential international human rights process currently underway on the subject of reparations for chattel enslavement and its ongoing consequences.

The leaders who came before ACE argued for civil rights with extraordinary courage and at great personal cost. ACE honors every one of them. But civil rights are what a government extends to those it recognizes as fully human. The prior and more fundamental claim is the one this submission advances: that Black Americans were denied legal personhood before any civil rights framework existed to address them, that the denial was deliberate and systematic, that it produced consequences that are measurable and ongoing, and that it imposes a reparative obligation on the United States as a matter of international human rights law.

The Committee has the authority, the mandate, and now the active procedural vehicle to establish that this obligation exists and to define its content. ACE urges the Committee to do so.

Respectfully submitted,

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